

Form No: HCJD/C-121

**ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN.
JUDICIAL DEPARTMENT**

W.P. No.4619 of 2015.

Nadeem Iqbal.

Versus

D.C.O. etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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10.06.2015. Mr. Muhammad Jahangir Chatha, Advocate for the petitioner.

Mr. Aziz-ur-Rehman, A.A.G. with Muhammad Ashfaq EDO (Education), Multan.

Mehr Qamar Hussain, Advocate for respondents.

Brief facts, necessary for disposal of this writ petition, are that Education Department advertised 75 posts of Educator (ESE Science-Math) on contract basis in District Multan and in this regard, applications were invited for which qualification F.Sc. with B.A. was required. Petitioner applied for the said post and passed the test conducted by National Testing Service (NTS) while securing 53 marks. Thereafter, he submitted his academic certificates and his application was duly numbered as 247. Later, he appeared in interview before Departmental Selection Committee and passed it. Petitioner was inserted in the tentative list of candidates for the said post at serial No.81. Subsequently, the petitioner was held to be not eligible for the said post on the pretext that he lacked requisite qualification. In view of the above background, petitioner has filed the instant petition with the following prayer:-

“Under these circumstances, it is most respectfully prayed that instant petition may kindly be accepted and report & parawise comments may very kindly be summoned from the respondents and they may very kindly be asked under what law & authority the petitioner has been deprived from his basic fundamental right as incorporated in the constitution of Islamic

Republic of Pakistan and the respondents may very kindly be directed to consider the petitioner for the post of ESE (SCI-Math) and include the name of the petitioner in the final list being eligible and the appointment on the post of ESE (Sci-Math) may kindly be made purely on merits, in the supreme interest of justice.

It is further prayed that respondents may very kindly be restrained for recruitment on the posts of ESE (Sci-Math) or the respondents may be ordered to include / consider the petitioner in the process of recruitment till the final decision of the instant writ petition, in the interest of justice.”

2. Learned counsel for the petitioner contends that petitioner was entitled and qualified for the said post. According to him, petitioner not only possessed the requisite qualification, but has also qualified the test and interview, therefore, his name was inserted in the tentative list, but later his name was dropped out without any rhyme or reason; adds that petitioner fulfills all the basic requirements for the said post, but despite that his name has not been mentioned in the merit list. Finally, he submits that the act of respondents is in sheer violation of equality clause as contained in Article 25 of the Constitution of Islamic Republic of Pakistan, 1973.

3. On the other hand, learned A.A.G., assisted by learned counsel for the respondents, contends that name of petitioner was included in the tentative merit list, but he lacked the basic qualification for the post of ESE (Science Math) under Recruitment Policy of Educators, 2014. As per the Recruitment Policy, specific test for the post of ESE (Science Math) is as under:-

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| “a. | <i>Core School Subjects</i> | <i>85 Marks</i> |
| | <i>(Science 45, Math 30, English 10)</i> | |
| b. | <i>Insturctional Planning, Strategies,</i> | <i>10 Marks</i> |
| | <i>Assessment, Learning environment</i> | |
| | <i>(Pedagogy)</i> | |
| c. | <i>Current Affairs / General Knowledge</i> | <i>5 Marks.”</i> |

4. Heard.

5. Petitioner has himself admitted in this petition that he does not possess the requisite qualification because he possesses Diploma of Associate Engineer and not F.Sc. The relevant part of Para 9 of this writ petition is as under:-

“According to the decision of IBCC/HEC/Equivalence Committee of this University, the Qualification 3-Years Diploma of Associate Engineer obtained by petitioner from Punjab Board of Technical Education Lahore is Equivalent to F.A. / F.Sc. for admission to (B.A./B.Com).”

For this very reason, petitioner's name was not inserted in the final merit list and was excluded due to not having prescribed qualification. Even otherwise, there were only 75 posts and petitioner stood at Serial No.81 of the merit list, which otherwise makes him not qualified for the said post.

6. That the above findings are supported by judgment of this Court reported as Rao Muhammad Aftab vs. Province of Punjab through Secretary Schools, Education, Lahore and 3 others, (2014 PLC (C.S.) 39) Para 4 of the said judgment reads as under:-

“Admittedly, the petitioner has not passed F.Sc. examination with the subjects as laid down in the advertisement rather obtained a diploma of Associate Engineering in Electronic Technology. The posts advertised by the respondents are specifically meant for the purpose of imparting education in the faculties of Science and Mathematics to the students of Elementary classes and the respondent/department has laid down the criteria of the candidates to have studied Physics, Chemistry, Biology or Mathematics upto F.Sc. level, thus requiring knowledge of the said subjects in accordance with the syllabi prescribed upto the Intermediate level. Perusal of the result intimation cards for the first, second and third year of the diploma of the petitioner shows that the petitioner has primarily carried out studies inter alia in Electrical Essentials and Networks, Electrical Drawing/General Engineering Computer Applications, Electronics Devices and Circuits, Motors and Generators, Measuring Instruments, Pulse Digital Circuits, Communication System-I, II, Amplifiers and Radio Receiver, Industrial Management and Human Relations, TV Circuits and Systems, Industrial Electronics, Antenna and Transmission Lines, Microwave and Radar, Microprocessor and Microcomputer, Equipment Servicing and Project, therefore, the study of the petitioner in the subjects of Physics, Chemistry, Biology/Math as far as their theoretical aspect is concerned is not as detailed and extensive as is required to be carried out by a student who passed F.Sc. examination with these subjects. The

students to be taught are of elementary level, therefore, their teacher is required to have an in-depth knowledge of the basic principles and ability to make the students understand the same which the Appointing Authority does not consider to be satisfied by persons who have not studied subjects of Physics, Chemistry, Biology/Mathematics for the whole two years. Had the intention of the respondents/department been to also appoint candidates having qualification equivalent to F.Sc. (Physics, Chemistry, Biology/ Mathematics) it would have stipulated this in the advertisement seeking applications. Non-mentioning of this fact in the advertisement means that they only require candidates having qualification as laid down in the advertisement”.

6. It is established principle of law that this court cannot substitute the opinion of a competent Departmental Authority unless it is shown to be suffering from patent illegality or is the result of manifest jurisdictional error. Reference in this regard can be made to case titled “Arshad Tabassum Vs. The Registrar, Lahore High Court, Lahore” (2015 SCMR 112).

7. In such circumstances, petitioner could not establish any malice on the part of Departmental Authority, since he could not fulfill the requisite criteria for the post of ESE (Science Math), therefore, he was not eligible for appointment. No irregularity has been committed by the respondents while acting on the recommendations of the Departmental Selection Committee, warranting any interference by this court, in constitutional jurisdiction.

8. The upshot of above discussion is that there is no merit in this writ petition, hence, the same is hereby **dismissed.**

(Muhammad Sajid Mehmood Sethi)
Judge

Mian Farrukh

Approved for reporting